

By a recent Act 36 & 37 Vict. c. 66, s. 25, subs. 3, "an estate for life without impeachment of waste shall not confer or be deemed to have conferred upon the tenant for life, any *legal* right to commit waste of the description known as *equitable waste*, unless an intention to confer such right shall expressly appear by the instrument creating such estate."

[20. By the Settled Land Act, 1882, a tenant for life though impeachable for waste may with the consent of the trustees of the settlement or an order of the Court cut timber ripe and fit for cutting, and is entitled to one fourth of the net proceeds (*b*), and the same Act gives the tenant for life power to lease unopened mines, setting aside a portion of the profits for the benefit of the remaindermen (*c*).]

21. **Bonus for not opposing a bill in Parliament.** — As another instance of a constructive trust, where money is paid to a tenant for life in consideration of his not opposing a bill in parliament for sanctioning a railway, he is constructively a trustee of the money for all the persons interested under the settlement (*d*).

[22. **Salmon fishings.** — Again, where a grant had been made by the Crown to the Aberdeen Town Council of salmon-fishings in the sea opposite certain lands which in the view of the Court were held by the Town Council in trust for the Aberdeen University and its professors, it was held that the grant of the fishings having been made to the Town Council as the proprietors of the lands, they were constructive trustees of the fishings for the University and its professors (*e*).

23. **Mortgagee.** — A mortgagee is not a constructive trustee for the mortgagor of his power of sale, which is a power given to him for his own benefit, to enable him the better to realize his debt (*f*).]

24. **Mortgagee in possession.** — A mortgagee in *possession* is constructively a trustee of the rents and profits, and bound

[*b*] 45 & 46 Vict. c. 38, s. 35.]

[*c*] Sects. 6, 11.]

[*d*] Pole v. Pole, 2 Dr. & Sm. 420;

[Earl of Shrewsbury v. North Staffordshire Railway Company, 1 L. R. Eq. 608.]

[*e*] Aberdeen Town Council v.

Aberdeen University, 2 App. Cas.

544.]

[*f*] Warner v. Jacob, 20 Ch. D. 220.]